

	as defendants both the City of Anaheim and Jared Moye. The court finds that seven separate actions pursued by the same plaintiff naming the same defendants and the same operative facts that have previously been judged against plaintiff satisfies the requirements of C.C.P. 391(b)(2). <u>See</u> <i>Goodrich v. Sierra Vista Regional Medical Center</i> (2016) 246 Cal. App. 4th 1260. The is so even though plaintiff has dismissed several of the seven actions. <i>Tokerud v. Capitolbank Sacramento</i> (1995) 38 Cal. App. 4th 775, 779 (“A party who repeatedly files baseless actions only to dismiss them is no less vexatious than the party who follows the actions through to completion. The difference is one of degree, not kind.”) The consequences of this finding are addressed below. While defendants argue that Section 391(b)(3) also applies to plaintiff, the court is not persuaded. The court reads this section as applying to conduct in a single pending civil action—and not a compilation of activities that can be observed from various separately-pending actions. It is true, as defendants have established, that plaintiff has filed motions that are unmeritorious or potentially frivolous. For example, in one of the other cases filed by plaintiff, 2024-01395650, plaintiff filed a motion to continue a trial date when no trial date has been set. (<u>See</u> Item 61 on the court’s current calendar.) Further, plaintiff has named the current opposition as “Notice of Opposition and Notice of Motion and Motion to Set-A-Side the Antichrist City of Anaheim and Defendant Jared Moye Seek Motion to Consolidate and Demur Complaint, the Antichrist Fail to Provide the Burden of Proof as Per Statutory Law, Which Automatic Grants Plaintiff, Motion to Set Aside the Antichrist also Requesting a Motion for Vexatious Litigant, There is Three Current Cases on File and one Past Case, Total of Four Cases, However Seven Cases Is Required to Be a Vexatious Litigant The Antichrist Again Fails to Provide the Requirements Needed to be a Vexatious Litigant, Which Automatic Grants Plaintiff Approval to Set-A-Side Motion.” (ROA 74). Also in this case, plaintiff has filed something that appears to request the revocation of a driver’s license. (ROA 37). But a meritless or frivolous motion in a different matter does not seem to fall within the framework of
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	391(b)(3). While plaintiff has made certain filings in the current case that may be frivolous, the few that have been made do not, at this time, rise to the level of violating Section 391(b)(3). See <i>Morton v. Wagner</i> (2007) 156 Cal. App. 4th 963, 972 (no bright line rule as to what constitutes repeatedly filing unmeritorious or frivolous motions). Defendants' motion on this grounds is denied. Nevertheless, plaintiff is cautioned that the court may revisit this ruling should plaintiff persist in filing frivolous or baseless motions. <u>Plaintiff shall post security (money); Plaintiff shall be subject to a pre-filing prohibition.</u> As a consequence of being declared a vexatious litigant, the vexatious litigant statute describes available remedies, which defendants seek. First, Section 391.3 states that, after the court has made a finding that a plaintiff is a vexatious litigant, the court then determines whether the plaintiff will prevail on plaintiff's claims. If the court finds "there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security" in an amount determined by the court. In determining the amount of the money that plaintiff must post, the court need not take into consideration plaintiff's ability to pay the ordered security. <i>Deveraux v. Latham & Watkins</i> (1995) 32 Cal. App. 4th 1571, 1587-1588 (overruled on other grounds). Second, Section 391.7 authorizes the court to issue an order that "prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed." Section 391.7 is "a powerful . . . tool designed to preclude the initiation of meritless lawsuits and their attendant expenditures of time and costs." <i>Shalant</i> 51 Cal. 4th at 1170. A trial court imposing a pre-filing order under 391.7(a) reflects a determination "that no court or adverse party should be burdened by the particular plaintiff's meritless litigation." <i>Id.</i> at 1171. It is "an important tool for the courts to manage their dockets and
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		prevent frivolous claims” by in propria persona litigants. <i>Id.</i> at 1176. Pursuant to Section 391.3, the court finds that plaintiff has no reasonable probability of prevailing on the allegations in the complaint. The conduct at issue occurred in 2020. The complaint was filed in 2024. Assuming a 3-year statute of limitations (C.C.P. § 338(a)), the complaint is time-barred. Shorter limitations periods may apply in any event. And given the facts of this case—namely, seven separate complaints filed arising out of the same nucleus of operative allegations—the court finds that a prefiling prohibition is appropriate. Therefore, the court orders plaintiff to post a \$10,000 bond for the benefit of moving defendants City of Anaheim and Jared Moye on or before January 6, 2025. Failure to do so shall result in the dismissal of this action against those defendants. C.C.P. §391.4. Further, the court orders that plaintiff is prohibited from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. The clerk of the court shall prepare Judicial Council form VL-100 for signature by the court. Once signed, the clerk of the court shall provide a copy to the Judicial Council. In issuing this order, the court has considered all of plaintiff’s oppositions. (ROA 18, 47, 74). Defendants shall give notice.
61.	Sowell v. City of Anaheim 2024-01395650	Defendants City of Anaheim’s and Jared Moye’s Motion to Declare Plaintiff Major R. Sowell a Vexatious Litigant, and for Order Requiring Security and Prefiling Authorization is GRANTED. (<u>See</u> Code Civ. Proc. § 391.1). The court grants defendants Request of Judicial Notice (“RJN”) filed at ROA 25. <u>Brief overview of the allegations.</u> Plaintiff appears to allege that he was improperly terminated in February 2020 from his employment by Defendant City of Anaheim. The improper conduct

	allegedly included retaliation for whistleblowing activities. <u>Vexatious Litigant statute.</u> Defendants filed their motion pursuant to C.C.P. § 391. Relevant to this motion, Section 391(b) defines a “vexatious litigant” as one who does either of the following: (2) After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined. (3) In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay. Cases interpreting the vexatious litigant statute explain that its provisions “are designed to curb misuse of the court system by those persistent and obsessive litigants who, repeatedly, waste the time and resources of the court system and other litigants.” <i>Shalant v. Girard</i> (2011) 51 Cal. 4th 1164, 1169 (citation omitted); <u>see also</u> <i>In re Marriage of Deal</i> (2020) 45 Cal. App. 5th 613, 618 (same). The in propria persona litigant can be declared vexatious by “relitigate[ing] or attempt[ing] to relitigate matters previously determined against him or her, [or] repeatedly pursu[ing] unmeritorious or frivolous tactics in litigation. . . .” <i>Shalant</i>, at 1169-1170. <u>Analysis.</u> This is not the first litigation commenced by plaintiff related to his February 2020 termination. Previously, plaintiff filed litigation involving that termination in 2020, initially commenced in Los Angeles County and transferred to Orange County in case 2022-01239814. (RJN A). That case was dismissed with prejudice following a demurrer (RJN C), and a judgment entered June 13, 2022. (RJN F). A review of the docket from
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	the prior case reveals that no appeal was taken from the judgment. The evidence submitted in support of this motion establishes that plaintiff filed seven separate actions in 2024 related to the same February 2020 termination, all of which raise virtually the same allegations. (<u>See</u> Decl. of Maya; Exh. A). Each of these actions named as defendants both the City of Anaheim and Jared Moye. The court finds that seven separate actions pursued by the same plaintiff naming the same defendants and the same operative facts that have previously been judged against plaintiff satisfies the requirements of C.C.P. 391(b)(2). <i>See Goodrich v. Sierra Vista Regional Medical Center</i> (2016) 246 Cal. App. 4th 1260. The is so even though plaintiff has dismissed several of the seven actions. <i>Tokerud v. Capitolbank Sacramento</i> (1995) 38 Cal. App. 4th 775, 779 (“A party who repeatedly files baseless actions only to dismiss them is no less vexatious than the party who follows the actions through to completion. The difference is one of degree, not kind.”) The consequences of this finding are addressed below. While defendants argue that Section 391(b)(3) also applies to plaintiff, the court is not persuaded. The court reads this section as applying to conduct in a single pending civil action—and not a compilation of activities that can be observed from various separately-pending actions. It is true, as defendants have established, that plaintiff has filed motions that are unmeritorious or potentially frivolous. For example, plaintiff filed a motion to continue a trial date when no trial date has been set. (ROA 9, 57) Further, plaintiff has named the current opposition as “Opposition Notice of Motion and Motion to Set-A-Side the Antichrist City of Anaheim and Defendant Jared Moye Seek Motion to Consolidate and Demur Complaint, the Antichrist Fail to Provide the Burden of Proof as Per Statutory Law, Which Automatic Grants Plaintiff, Motion to Set Aside the Antichrist also Requesting a Motion for Vexatious Litigant, There is Three Current Cases on File and one Past Case, Total of Four Cases, However Seven Cases Is Required to Be a Vexatious Litigant The Antichrist Again Fails to Provide the Requirements Needed to be a Vexatious Litigant, Which Automatic Grants Plaintiff
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	Approval to Set-A-Side Motion.” (ROA 78). Also in another case on the court’s current docket involving these same parties – 2024-01394352-- plaintiff has filed something that appears to request the revocation of a driver’s license. (ROA 37 form that related case). But a meritless or frivolous motion in a different matter does not seem to fall within the framework of 391(b)(3). While plaintiff has made certain filings in the current case that may be frivolous, the few that have been made do not, at this time, rise to the level of violating Section 391(b)(3). See <i>Morton v. Wagner</i> (2007) 156 Cal. App. 4th 963, 972 (no bright line rule as to what constitutes repeatedly filing unmeritorious or frivolous motions). Defendants’ motion on this grounds is denied. Nevertheless, plaintiff is cautioned that the court may revisit this ruling should plaintiff persist in filing frivolous or baseless motions. <u>Plaintiff shall post security (money); Plaintiff shall be subject to a pre-filing prohibition.</u> As a consequence of being declared a vexatious litigant, the vexatious litigant statute describes available remedies, which defendants seek. First, Section 391.3 states that, after the court has made a finding that a plaintiff is a vexatious litigant, the court then determines whether the plaintiff will prevail on plaintiff’s claims. If the court finds “there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security” in an amount determined by the court. In determining the amount of the money that plaintiff must post, the court need not take into consideration plaintiff’s ability to pay the ordered security. <i>Deveraux v. Latham & Watkins</i> (1995) 32 Cal. App. 4th 1571, 1587-1588 (overruled on other grounds). Second, Section 391.7 authorizes the court to issue an order that “prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed.” Section 391.7 is “a powerful . . . tool designed to preclude the initiation of meritless lawsuits and their attendant expenditures of
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	time and costs.” <i>Shalant</i> 51 Cal. 4th at 1170. A trial court imposing a pre-filing order under 391.7(a) reflects a determination “that no court or adverse party should be burdened by the particular plaintiff’s meritless litigation.” <i>Id.</i> at 1171. It is “an important tool for the courts to manage their dockets and prevent frivolous claims” by in propria persona litigants. <i>Id.</i> at 1176. Pursuant to Section 391.3, the court finds that plaintiff has no reasonable probability of prevailing on the allegations in the complaint. The conduct at issue occurred in 2020. The complaint was filed in 2024. Assuming a 3-year statute of limitations (C.C.P. § 338(a)), the complaint is time-barred. Shorter limitations periods may apply in any event. And given the facts of this case—namely, seven separate complaints filed arising out of the same nucleus of operative allegations—the court finds that a prefiling prohibition is appropriate. Therefore, the court orders plaintiff to post a \$10,000 bond for the benefit of moving defendants City of Anaheim and Jared Moye on or before January 6, 2025. Failure to do so shall result in the dismissal of this action against those defendants. C.C.P. §391.4. Further, the court orders that plaintiff is prohibited from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. The clerk of the court shall prepare Judicial Council form VL-100 for signature by the court. Once signed, the clerk of the court shall provide a copy to the Judicial Council. In issuing this order, the court has considered all of plaintiff’s oppositions. (ROA 21, 42, 78). PLAINTIFF’S MOTION TO CONTINUE TRIAL Also on calendar today is Plaintiff Major Ray Sowell’s Motion to Continue Trial. That motion is denied. There is no trial date set in this action, thus there is no trial date to continue. Defendants shall give notice.
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